

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:
Date Filed:

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TREVOR BUTLER,

Plaintiff,

Plaintiff designates
KINGS COUNTY
as the place of trial

-against-

The basis of the venue is:
Place where the cause of
action arose

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
SHYNELL HINES (Shield # 29313), SERGEANT
JOHN DOE 1 and POLICE OFFICERS JOHN DOE 1-3,

The plaintiff resides at:
Kings County, New York

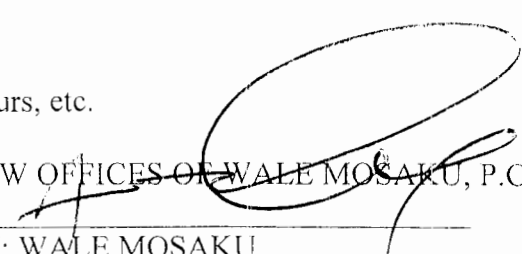
Defendants.
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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
February 14, 2015

Yours, etc.


LAW OFFICES OF WALE MOSAKU, P.C.

BY: WALE MOSAKU
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

THE CITY OF NEW YORK
C/O New York City Corporation Counsel
100 Church Street
New York, N.Y. 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.
TREVOR BUTLER,

Plaintiff,

-against-

COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
SHYNELL HINES (Shield # 29313), SERGEANT
JOHN DOE 1 and POLICE OFFICERS JOHN DOE 1-3,

Defendants.

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TREVOR BUTLER (hereinafter "plaintiff"), by his attorney(s), THE LAW OFFICES OF
WALE MOSAKU, P.C., complaining of the defendants, THE CITY OF NEW YORK,
POLICE OFFICER SHYNELL HINES (Shield # 29313), SERGEANT JOHN DOE 1
and POLICE OFFICERS JOHN DOE 1-3, (collectively referred to as "the defendants"),
upon information and belief, alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to
the plaintiff under color of statute, ordinance, regulation, custom;
and/or to redress the deprivation of rights, privileges, and immunities
secured to the plaintiff by the Fourth, Fifth, Sixth and Fourteenth
Amendments to the Constitution of the United States; and by Title 42
U.S.C. §§ 1982, 1983 and 1985; and arising under the law and
statutes of the City and/or State of New York.

THE PARTIES

2. The plaintiff is a resident of the City of New York, who resides in
Kings County, City and State of New York. Plaintiff is an African
American male of full age.
3. At all relevant times, defendants POLICE OFFICER SHYNELL
HINES (Shield # 29313), SERGEANT JOHN DOE 1 and POLICE
OFFICERS JOHN DOE 1-3 of the New York City Police

Department (hereinafter "defendant officers"), upon information and belief, were and still are law enforcement officers in the employ of the police department of the City of New York (hereinafter "NYPD").

4. At all times herein, the defendant officers were employed as law enforcement officers of the City of New York, State of New York, and were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York. The defendant officers were the servants, agents, and employees of their co-defendant, the City of New York, so that their acts are imputed to the City of New York and the NYPD.
5. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant officer, through its Police Department, namely NYPD, and the actions of the defendant officer complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
6. The plaintiff sues all defendants in their individual and official capacities.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

7. All conditions precedent to filing of this action have been complied with; on October 30, 2014, within ninety days after the claim(s) alleged in this complaint arose, a written notice of claim, sworn to by the plaintiff and/or his representative, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts. Plaintiff's claim was assigned Claim No. 2014PI032990.

8. At least thirty days have elapsed since the service of the above-mentioned notice of claim, and adjustment or payment of the claim has been neglected or refused.

This action, pursuant to New York State and City Law, has been commenced within one year after the happening of the event upon which the malicious prosecution claim is based.

FACTUAL ALLEGATIONS

9. On or about September 30, 2014, at approximately 12:30 a.m., on Sheffield Avenue, between Atlantic Avenue and Liberty Avenue (hereinafter "subject location"), the plaintiff was illegally and unlawfully arrested by the defendant officers.
10. That immediately prior to his arrest, the plaintiff was driving his friend, namely Fulton McKelvin's vehicle, specifically a Chevrolet Impala. Mr. McKelvin was also a passenger in the vehicle that the plaintiff was driving at that time.
11. That prior to his arrest, the plaintiff had observed the defendant officers adjacent to another vehicle that they had pulled over. As the plaintiff drove by the defendant officers, they indicated to him to pull over to the curb. The plaintiff dutifully pulled over to the curb.
12. After the plaintiff pulled over to the curb, the defendant officers approached the vehicle, and asked for license and registration documentation. The plaintiff gave them his driver's license.
13. Mr. McKelvin opened up the glove compartment in order to retrieve the vehicle registration information. As Mr. McKelvin did so, upon information and belief, one of the officers observed an NYPD issued Shield in the glove compartment.
14. At that juncture the defendant officers instructed the plaintiff to turn off the vehicle engine, and the plaintiff complied.
15. The defendant officers asked who the shield belonged to, and the plaintiff informed them that the vehicle belonged to Mr. McKelvin.

16. Mr. McKelvin also admitted that the vehicle belonged to him. Mr. McKelvin further stated that the shield belonged to his wife, who he claimed worked at a precinct.
17. Upon information and belief, the defendant officers attempted to corroborate Mr. McKelvin's claims regarding the shield but were unable to.
18. As such, the defendant officers radioed for back-up, and another NYPD vehicle, within which were a Sergeant and two other officers, arrived on the scene.
19. At that juncture, the plaintiff was arrested along with Mr. McKelvin.
20. Upon his arrest, the plaintiff protested, asserting that there was no basis for his arrest, since Mr. McKelvin had admitted to ownership of the vehicle, and knowledge of the shield.
21. The plaintiff's entreaties were ignored by the defendant officers.
22. At that juncture, the plaintiff was transported to the 75th police precinct, after being told that he was being charged, upon information and belief, with possession of a police badge.
23. That the plaintiff was fingerprinted and photographed, or otherwise "processed" at the 75th police precinct.
24. That the plaintiff was subsequently taken to "Central Booking", located within the Kings County Criminal Courthouse building situated at 120 Schermerhorn Street, Brooklyn, New York 11201.
25. The plaintiff was again fingerprinted and photographed upon arrival at "Central Booking".
26. That the plaintiff was then caused to be confined at "Central Booking" until approximately 09:00 p.m. on September 30, 2014, when he was released.
27. Upon information and well founded belief, the Kings County District Attorney's office declined to prosecute him. The plaintiff's arrest number was "K14687628".

CAUSE(S) OF ACTION: FALSE ARREST AND FALSE IMPRISONMENT UNDER
42 U.S.C § 1983 and NEW YORK STATE LAW

28. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 27 of this complaint as though fully set forth herein.
29. The above-described respective arrest, detention and imprisonment of the plaintiff were without just or probable cause and without any warrant or legal process directing or authorizing the plaintiff's arrest or subsequent detention.
30. As a result of plaintiff's above-described false arrest and detention, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
31. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendant officers, individually and severally.

CAUSE OF ACTION: FAILURE TO INTERVENE UNDER 42 U.S.C § 1983

32. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 51 of this complaint as though fully set forth herein.
33. The defendant officers had an affirmative duty to intervene on the plaintiff's behalf to prevent the violation to his constitutional rights, as more fully set forth above.
34. The defendant officers failed to intervene on the plaintiff's behalf to prevent the violation of his constitutional rights, despite having had a realistic and reasonable opportunity to do so.
35. As a consequence of the defendant officers' actions, plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and his constitutional rights were violated. Plaintiff

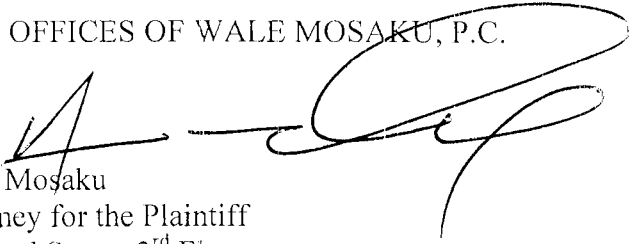
hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against each of the defendants, individually and severally.

WHEREFORE, plaintiff prays for judgment against the defendants, individually and severally, as follows: for compensatory damages against each defendant in an amount to be proven at trial; for exemplary and punitive damages against each defendant in an amount to be proven at trial; for costs and expenses of suit herein, including plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
February 14, 2015

LAW OFFICES OF WALE MOSAKU, P.C.

By:


Wale Mosaku
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index #:

TREVOR BUTLER,

Plaintiff,

-against-

ATTORNEY
CERTIFICATION
PURSUANT TO 22 NYCRR
Part 130-1.1(c)

THE CITY OF NEW YORK, POLICE OFFICER
SHYNELL HINES (Shield # 29313), SERGEANT
JOHN DOE 1 and POLICE OFFICERS JOHN DOE 1-3,

Defendants.

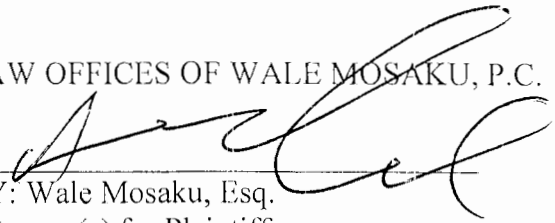
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The undersigned attorney does hereby certify:

That I am the attorney for the plaintiff and duly admitted to practice law before the
Courts of the State of New York. I do hereby provide this signed certification pursuant to
22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the
Court in this action are not frivolous.

Dated: Brooklyn, New York
February 14, 2015

LAW OFFICES OF WALE MOSAKU, P.C.


BY: Wale Mosaku, Esq.
Attorney(s) for Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS Index No.

TREVOR BUTLER,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, POLICE OFFICER
SHYNELL HINES (Shield # 29313), SERGEANT
JOHN DOE 1 and POLICE OFFICERS JOHN DOE 1-3,
Defendant(s).

SUMMONS AND COMPLAINT

LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 201_

Attorney(s) for Defendant(s)
